

		The Court Clerk is to provide notice of the Court's ruling.
15	30-2026-01592295 Cerni vs. Kirley	The Court has read and considered Kimberly Kirley's Motion to Quash Service of Summons (ROA 7). The Court takes Judicial Notice of the Court's Docket. No proof of service of summons has been filed in this matter by the Plaintiff. The Court GRANTS Ms. Kirley's Motion to Quash. The Court Clerk is to provide notice of the Court's ruling.
16	30-2026-01581097 Far West South Coast, Ltd. vs. Lopez	The Court has read and considered the Motion to Set Aside Default and Default Judgment & Quash Any Writ of Possession/Execution (ROA 61). The Court takes Judicial Notice of the Proof of Service of Summons (ROA 14), Proof of Service of Summons (ROA 12), Request for Entry of Default (ROA 21), Judgment-Unlawful Detainer (ROA 51), and Notice of Entry of Judgment (ROA 55). A review of the Proof of Service indicates that Hannia Belmontes mailed the Motion to Set Aside Judgment on 8/14/2026 to Danielle T. Kussler at 2040 Main Street, Suite 500, Irvine, CA 92614. This Motion was not filed with the Court until 9/2/2026, so the Court would not have assigned a date on 8/14/2026. The Defendants also signed the Motion on 8/14/2026. ROA 21 shows that the Defendants were mailed notice of the request to enter default on 7/29/2026. Additionally, Judgment on this matter was not entered until 8/31/2026. The Defendant failed to provide notice and service of the Motion pursuant to California Code of Civil Procedure § 1005 on the Plaintiff. The Court of Appeal held that a litigant in propria persona is subject to the same restrictive rules of procedure as an attorney. (<i>Kabbe v. Miller</i> (1990) 226 Cal.App. 3d 93, 98.) Furthermore, the Defendants signed this motion on 8/14/2026 but waited to file it with the Court until 9/2/2026. The Court finds that, at minimum, the Defendants were aware of their default status since August 14, 2026, and inexcusably neglected these proceedings by failing to notify the Court or take any action until 9/2/2026. The Court finds that the Defendants failed to meet their burden under California Code of Civil Procedure § 473(b). Therefore, the Court DENIES the Defendants' Motion to Set Aside Default and Default Judgment. The Court Clerk is to notify the Orange County Sheriff's Department that they may proceed with the lockout forthwith. The Court Clerk is to provide notice of the Court's ruling.